UNITED STATES BANKRUPTCY COURT

FOR THE DISTRICT OF NEW MEXICO

IN RE DEBTOR: [DEBTOR NAME] [Address line]	Case No. [00-00000-x00]
[PLAINTIFF NAME] Plaintiff, [DEFENDANT NAME] Defendant.	Adv. Case No. [00-00000-x]

DEFENDANT'S MOTION TO DISMISS ADVERSARY COMPLAINT AND MEMORANDUM IN SUPPORT

COMES NOW the Defendant, [DEFENDANT NAME], by and through counsel, [FIRM NAME], and pursuant to Federal Rules of Bankruptcy Procedure 7012 and 9013 and Federal Rule of Civil Procedure 12(b)(6), moves the Court for an order dismissing the Complaint filed by the Plaintiff. In support, the Defendant states as follows.

Motion

1. The Complaint asserts [NUMBER] claims for relief. Each claim rests on the allegations of a single transaction, which the Defendant denies.

2. The Defendant moves under Rule 12(b)(6) because the Complaint does not state a plausible claim for relief, even accepting its factual allegations as true.[1]

3. This motion is opposed. The Defendant asked Plaintiff's counsel to withdraw the Complaint and received no response before this filing.

[1]This footnote is placeholder text, present only to test footnote layout.

Memorandum

Background

4. [Placeholder background paragraph describing the bankruptcy case and the adversary proceeding in general terms.]

5. The Complaint identifies the following relevant allegations:

(a) the first alleged transfer, on a stated date;

(b) the second alleged transfer, on a stated date; and

(c) the demand that followed.

Argument

A. The Complaint does not identify the required element

6. A complaint must contain enough facts to state a claim that is plausible on its face. Bell Atlantic Corp. v. Twombly, 550 U.S. 544 (2007).

> The Complaint does not allege the element described in this quotation, and the remainder of the Complaint states legal conclusions rather than facts.
>
> [Placeholder citation to the Complaint.]

7. For these reasons, the Complaint fails to state a claim.

B. Leave to amend would be futile

8. The defects identified above cannot be cured by amendment because they go to the substance of the claim.

Conclusion

9. The Defendant respectfully asks the Court to grant the motion.

WHEREFORE the Defendant requests that the Court dismiss the Complaint with prejudice, and grant such other and further relief as the Court deems just and proper.

Respectfully Submitted,

[FIRM NAME]

By: _____

[Attorney Name]

[Post Office Box]

[City, State ZIP]

[Telephone]

[e-mail]

Attorneys for Defendant

CERTIFICATE OF SERVICE

I certify that on [date], I filed this motion electronically through the CM/ECF system, which caused the parties registered for electronic service to be served, and that I mailed a copy by first-class United States mail to [party and address]. [Attorney Name]